

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE RAMIREZ,

Petitioner

VS.

FRANK S LEMUS,

Respondent

) Case Number: FDV-25-818357

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Michelle Ramirez (Mother) and Respondent Frank Lemus (Father) have two minor children, Eva (DOB 12/25/10, age 15) and Frank (DOB 8/12/2012, age 13).
- 2) On 6/25/2025, the Court denied Mother's request for a domestic violence restraining order against Father. On 7/31/2025, the Court ordered as week-on, week-off parenting time schedule for the parties and set a review hearing for 11/18/2025.
- 3) On 11/18/2025, the Court maintained the week-on, week-off schedule, with exchanges on Friday after school or at 5pm at UCSF Benioff if school is not in session. The Court issued various other orders, including a right of first refusal order and an order that the parenting time schedule may be modified only by mutual written agreement of the parties, with 30 days' notice or as soon as possible in the case of an emergency. The Court also ordered a Tier II interview of Eva and ordered Mother to work with Family Court Services to set up a time for Eva to be interviewed regarding her preferences as to time with each parent. The Court set a review hearing for

1 5/12/2026 and ordered the parties to file and serve update declarations at least 10 days before that
2 date.

- 3 4) On 5/4/2026, Father filed an update declaration stating that Mother “continues to unilaterally
4 modify the parenting time schedule” and “frequently leaves the children in [his] care during her
5 custodial time based on her own convenience, rather than following the Court’s orders.” He states
6 Mother does not provide the children with adequate clothing, which requires the children to
7 “transport belongings back and forth between homes in luggage.” He states Mother is also not
8 complying with the orders regarding exchange location; she frequently brings the children to
9 Father’s home, unannounced. Father does not object to spending additional time with the
10 children, but he believes that Mother’s ongoing failure to comply with orders negatively affects
11 the children's stability and wellbeing. He asks the Court to continue the prior orders and order any
12 additional relief as appropriate.

- 13 5) Mother has not filed an update declaration as of the date of the tentative ruling.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.
- 19 2) The Court finds it is in the children’s best interest to maintain all orders from the 11/18/2025
20 hearing, with the exception that the Tier II order for an interview of Eva is hereby vacated. The
21 Court has not received any information indicating that a Tier II interview is currently necessary
22 for Eva.
- 23 3) The Court admonishes Mother to follow all orders from the 11/18/2025 hearing, for example, that
24 the exchanges shall occur after school on Fridays or at 5pm at UCSF Benioff if school is not in
25 session, and that the parties may modify the parenting time schedule only by mutual written
26 agreement . Further, Mother shall ensure that the children have enough clothing and other
27 personal items while in her custody and care.
- 28 4) All other orders not in conflict with these orders shall remain in full force and effect.
29

- 1 5) If either party seeks to modify the current custody and parenting time schedule or has any other
- 2 custody or parenting time-related requests, they may file a new request for order.
- 3 6) The Court will prepare the Findings and Order After Hearing.